

24STCP00119 24STCP00119

County: los-angeles

Division: Civil Law and Motion

Department: 731

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Case Number: 24STCP00119 Hearing Date: July 9, 2026 Dept: 731

[TENTATIVE] ORDER DENYING

MOTION TO MODIFY AND DISMISS CURRENT ATTORNEY'S FEES

1. Background

Facts

On January 12, 2024, Petitioner Donna

Dotson ("Plaintiff") filed a petition re: arbitration award against Respondent Errol

Jay Gordon ("Respondent"). On March 8, 2024, Respondent filed an answer to the petition re: arbitration award.

On March 26, 2025, the parties

entered into a stipulation and order settling all matters. Petitioner agreed to pay Respondent \$27,392.92 at the rate of \$1,521.92 per month commencing August 10, 2025 and thereafter every 10th of each month until the total sum is paid. (Stip. Order, 3/26/25 at ¶2a.) In the case of default, Respondent shall file and enforce a judgment for the full amount of \$34,240.92 plus a ten (10) percent interest rate from January 19, 2024 to and through satisfaction judgment. (Id., ¶2b.)

On April 7, 2026, Petitioner filed

the instant motion to modify and dismiss current attorney fees. On June 26, 2026, Respondent filed an opposition. Any reply would have been due July 1, 2026. To date, no reply has been filed.

2. Motion

to Modify and Dismiss Attorney Fees

a.

Legal Standard

Pursuant the Code of Civil

Procedure Section 664.6: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6, subd.

(a).) Essentially, "where a stipulated judgment includes a dismissal, the parties must ask the trial court to retain jurisdiction before the dismissal deprives the court of that jurisdiction." (DeSaulles v. Community Hospital of Monterey Peninsula (2016) 62 Cal.4th 1140, 1155–1156.)

"Because of its summary nature, strict compliance with the requirements of section 664.6 is prerequisite to invoking the power of the court to impose a settlement agreement." (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37; Critzer v. Enos (2010) 187 Cal.App.4th 1242, 1262.) In ruling on a motion under Section 664.6, the trial judge may receive oral testimony or may determine the motion upon declarations alone. (Corkland v. Boscoe (1984) 156 Cal.App.3d 989, 994.) Where the agreement was reached at a court hearing, the court can resolve the dispute based on its own notes or recollection of what was agreed to (as well as any transcripts of the proceedings). (Richardson v. Richardson (1986) 180 Cal.App.3d 91, 97.)

b. Discussion

Petitioner moves for an order

modifying and dismissing the current order for her to pay attorney fees at \$27,392.92 in monthly installments of \$1,521.92 on the grounds that she is experiencing financial hardship and chronic health problems. In opposition, Respondent argues that the court's jurisdiction retained pursuant to Code of Civil Procedure Section 664.6 is limited to enforcing the stipulation only. The court agrees.

"Although a court may not add to or make a new stipulation without mutual consent of the parties (Jones v. World Life Research Institute (1976) 60 Cal.App.3d 836, 840, 131 Cal.Rptr. 674), it may reject a stipulation that is contrary to public policy (Mary R. v. B. & R. Corp. (1983) 149 Cal.App.3d 308, 316–317, 196 Cal.Rptr. 871), or one that incorporates an erroneous rule of law (Valdez v. Taylor Auto Co. (1954) 129 Cal.App.2d 810, 819, 278 P.2d 91)." (California State Auto. Assn. Inter-Ins. Bureau v. Superior Court (1990) 50 Cal.3d 658, 664 [268 Cal.Rptr. 284, 287, 788 P.2d 1156, 1159].) Essentially, the court may only amend, modify, or enter a new stipulation between the parties if there is mutual consent of the parties. Here, Petitioner is making a unilateral request for amendment or modification of the parties stipulated settlement agreement. Furthermore, Petitioner does not cite to any legal authority permitting the court to grant such request absent mutual consent. Moreover, as the opposition contends, Petitioner does not move to set aside the stipulated judgment under any of the grounds set forth in Code of Civil Procedure Section 473. Even if Petitioner did move to set aside the stipulated judgment, the moving papers do not contest the validity of the stipulated judgment.

3. Conclusion

Based on the foregoing, Petitioner Donna Dotson's Motion to Modify and Dismiss Current Attorney Fees is DENIED.

Respondent Errol Jay Gordon is ordered to give notice.